

		court to allow a sheriff to sell a debtor's interest in an LLC or the assets of a non-debtor/non-party LLC, the Motion is DENIED. The court further notes Creditor filed what appears to be an identical motion that is scheduled next week for June 11, 2026. The court orders that motion OFF CALENDAR unless Creditor appears at today's hearing to show good cause as to why that motion should not be ordered off calendar as a duplicative filing. Finally, Creditor is ordered to give notice of this ruling.
10.	Jamboree Center 5 LLC vs. Carlyle Capital Group 2025-01498196	Before the court is the unopposed motion for an award of contractual attorney fees filed by plaintiff Jamboree Center 5 LLC (Plaintiff) against defendants Carlyle Capital Group and Carlyle Capital Fund Inc. (collectively, Defendants). As more fully set further below, the motion is GRANTED in the reduced amount of \$27,739. Contractual attorney fees are recoverable as costs to the prevailing party. (Code Civ. Proc., § 1033.5, subd. (a)(10)(A); Civ. Code § 1717, subd. (a),(b).) Having prevailed at trial on the parties' written lease, dated October 16, 2024, the court finds Plaintiff is the prevailing party entitled to reasonable attorney fees pursuant to the attorney fee provision in the lease. (Comp., Exh. 1 at § 14.5.) The question becomes whether the \$36,179 in attorney fees Plaintiff seeks is reasonable. Generally, courts employ the lodestar method to determine if attorney fees are reasonable, which involves multiplying the reasonable rate of services by the number of hours spent on the case. (<i>Nichols v. City of Taft</i> (2007) 155 Cal.App.4th 1233, 1242.) The party seeking attorney fees is not entitled to all hours they claim in an attorney fee request and must prove the hours sought are reasonable and necessary. (<i>Concepcion v. Amscan Holdings, Inc.</i> (2014) 223 Cal.App.4th 1309, 1320.) <u>Hourly rates:</u> A "reasonable" hourly rate used to calculate the lodestar is the prevailing rate for similar work in the community where the court is located. (<i>Syers Properties III, Inc. v. Rankin</i> (2014) 226 Cal.App.4th 691, 695-696.) Plaintiff seeks attorney hourly rates ranging from \$475 to \$625, and paralegal hourly rates ranging from \$200 to \$295. Although Plaintiff produced no evidence of the skill or experience of each of the attorneys and paralegals involved, or the prevailing rates for attorneys in Orange County for unlawful detainer work, based on its experience,

		the court finds the requested hourly rates to be reasonable for the work performed in the Orange County community. The hours are on the high end of the range for reasonable hourly rates, but nonetheless within that range. Defendants filed no opposition objecting to the requested hourly rates. <u>Time Spent:</u> Fee motions should ordinarily be based upon detailed time records. (<i>Crespin v. Shewry</i> (2004) 125 Cal.App.4th 259, 271.) "Testimony of an attorney as to the number of hours worked on a particular case is sufficient evidence to support an award of attorney fees, [however,] even in the absence of detailed time records." (<i>Id.</i>; see also <i>Raining Data Corp. v. Barrenechea</i> (2009) 175 Cal.App.4th 1363, 1375-76.) The court is entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel's declaration, unsubstantiated by time records and billing statements. (<i>Weber v. Langholz</i> (1995) 39 Cal.App.4th 1578, 1587.) Here, Plaintiff seeks 91.9 total hours, comprising 45.6 hours by four attorneys and 46.3 hours by three paralegals. (Olinik Decl. Ex. 1.) It is unclear why this straightforward matter required the use of four attorneys and three paralegals. Without time records or a more detailed declaration than the somewhat conclusory declaration Plaintiff's counsel provided, the court cannot determine whether the time allegedly spent was duplicative, commensurate with the tasks, or otherwise reasonable. For example, Plaintiff seeks 53.1 hours for "Appearing at Trial and attending to post-trial issues (including reviewing and responding to Tenant's Notice of Appeal and Enforcing Writ of Possession)." No further details are provided and no breakdown as to who performed any of these tasks is provided either. Although there was one trial continuance, the trial itself was completed in a single afternoon with just one attorney appearing on Plaintiff's behalf. Moreover, Plaintiff has engaged in work relating to multiple writs of possession, those are simple court forms that should not require significant amounts of time. Similarly, although Defendants filed a notice of appeal, and the Court of Appeal issued multiple orders before dismissing the appeal based on Defendants' default, there is no indication of any significant work that was required by Plaintiff's attorneys. Moreover, it must be emphasized Plaintiff separately seeks 13 hours for preparing for trial, which means the 53.1 hours does not include any trial prep time. Finally, given the hourly rates are on the high end of the range or
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		reasonable fees, the work performed should be more efficient. As noted, Plaintiff has not provided any breakdown which professionals performed what number of hours of this work at what hourly rate. Rather, Plaintiff's counsel simply declares 53.1 hours were spent at \$20,940. The court finds 35 hours to be a more reasonable amount and the court values those hours at \$12,500. That is a reduction of \$8,440. The court otherwise finds the balance of the hours and fees requested to be reasonable. When this \$8,440 is deducted from the total of 36,179 that is sought, the result is \$27,739. Based on the foregoing, the motion is GRANTED and Plaintiff is awarded a total of \$27,739 in attorney fees against Defendants. Plaintiff's counsel is ordered to give notice of this ruling.
11.	<i>Irvine Spectrum Center LLC vs. Scan Fitness, LLC</i> 2023-01349243	Before the court is the unopposed motion for award of contractual attorney fees filed by plaintiff Irvine Spectrum Center LLC (Plaintiff) against defendant Scan Fitness LLC dba Stride (Defendant). As more fully set further below, the motion is GRANTED and Plaintiff is awarded the requested amount of \$16,472.50. Contractual attorney fees are recoverable as costs to the prevailing party. (Code Civ. Proc., § 1033.5, subd. (a)(10)(A); Civ. Code, § 1717, subd. (a), (b).) Having prevailed at trial on the parties' written lease and amendment, the court finds Plaintiff is the prevailing party entitled to reasonable attorney fees pursuant to the attorney fee provision therein. (Declaration of Ernie Zachary Park (Park Decl.), Exh. 3 at § VI.B; see also Exh. 1.) Generally, courts employ the lodestar method to determine if attorney fees are reasonable, which involves multiplying the reasonable rate of services by the number of hours spent on the case. (<i>Nichols v. City of Taft</i> (2007) 155 Cal.App.4th 1233, 1242.) The party seeking attorney fees is not entitled to all hours they claim in an attorney fee request and must prove that the hours sought are reasonable and necessary. (<i>Concepcion v. Amscan Holdings, Inc.</i> (2014) 223 Cal.App.4th 1309, 1320.) The court finds Plaintiff has shown the hourly rate sought at \$275 and number of hours at 58.9 hours are reasonable. (Park Decl. ¶¶ 12, 16, Exh. 5.) Accordingly, the court awards the amount requested at \$16,472.50.